Week 2: Sources of International Law

LAWS2000/8015 International Law

What are the sources of international law?

1. 'There is a clear hierarchy between the sources of international law as laid out in Article 38(1) of the ICJ Statute'.

   A. Analyse this statement critically. Explain the relationship between the sources mentioned in Art 38(1) of the ICJ Statute.

   B. Discuss the importance of the judgments of international courts and tribunals as a source of international law.

   C. What other sources beyond Article 38(1) of the ICJ Statute exist?

2. 'In addition to being consistent and widespread, practice must unfold over a long period of time for a new customary rule to be established.' Analyse this statement and discuss critically.

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